

CRM-M-32838-2026
DECIDED ON: 04.06.2026

.....PETITIONER

.....RESPONDENT

Mr. Manjinder Singh Bhullar, DAG, Punjab.

SANJAY VASHISTH, J (ORAL)

1. Prayer in this petition, filed under Section 482 of the BNSS, 2023 (earlier Section 438 Cr.P.C.), is for grant of anticipatory bail to the petitioner, who has been booked in a criminal case arising out of First Information Report, as detailed hereunder:-

Name & age of Petitioner (s)	FIR No.	Date	Section(s)	Police Station	District
Jodha Singh, aged about 19 years	81	25.03.2026	126(2), 118(2), 118(1), 115(2), 191(3), 190 of BNS, 2023(corresponding to sections 341, 326, 324, 323, 148, 149 of IPC)	Ajnala	Amritsar

2. Complainant namely Kuldeep Singh, got registered the FIR, which reads as under:-

“Statement of Kuldeep Singh son of Ajit Singh, resident of Village Fattewal Chhota, Police Station Ajnala, District Amritsar, aged about 23 years, Mobile Number 62808-22762. Stated that I am a resident of the as a aforementioned address and work driver. We are two brothers, myself and my elder brother Sarabjit

Singh, who also works as a driver. On dated 07.01.2026, I was returning home on my motorcycle after picking up my brother Sarabjit Singh from the turn of our village Fattowal Chhota. The headlight of our motorcycle was on. It was about 09:15 PM at night when we reached the village square (Chowk). Rajbir Singh son of Avtar Singh armed with a daatar, Jodha Singh son of Hardev Singh armed with a daatar, Jagir Singh son of Charan Singh armed with a gandasi, Kalu son of Hardev Singh armed with a daatar, residents of Fattewal Chhota, and Jarnail Singh son of Mangal Singh, resident of Village Kot Rajada, armed with a daatar, were standing in the village chowk. They blocked our way in the chowk, and the said Jodha Singh raised a lalkara, "Catch them and teach them a lesson for messing with us." Upon this, Jarnail Singh attacked with a daatar, which hit the left side of my head. Then he gave a second blow, which hit the back of my head. Then Kalu hit with his daatar, which hit the back of my head. Then Jodha Singh hit with his daatar, which hit the left side of my upper lip, resulting in my two upper teeth being broken. Then Jagir Singh hit with a daatar, which hit the left side of my waist, and a second blow hit my right hand. My brother and I fell to the ground along with the motorcycle. When my brother Sarabjit Singh tried to rescue me from the aforementioned persons, started beating my brother Sarabjit Singh they as well. We then raised a hue and cry, shouting "Maar Ditta Maar Ditta". Upon hearing this, my father Ajit Singh and Dilbagh Singh son of Massa Singh arrived, and many other people from the village gathered. Then all the aforementioned assailants fled from the spot with their respective weapons while giving threats to kill. Afterward, my brother Sarabjit Singh and father Ajit Singh arranged a vehicle and got me admitted to Civil Hospital Ajnala, where I am undergoing treatment. The cause of the grudge is that about 2 months ago, we had a dispute with the said Jodha Singh and Jagir Singh. Due to this same grudge, the aforementioned persons, in collusion with each other, blocked our way and inflicted injuries upon me with their hand-held weapons and beat both of us brothers. Until now, the respectable persons of the village were trying to facilitate a compromise between both parties, which could not be finalized. Today, I have come present before you along with my brother Sarabjit Singh. I am the claimant, let action be taken. I have recorded the statement and heard/read it. It is correct. SD/- Kuldeep Singh (aforementioned)".

3. Co-accused, namely Rajbir Singh and Jarnail Singh, have already been granted the concession of interim anticipatory bail by the Coordinate Bench of this Court, vide orders dated 13.05.2026 passed in CRM-M-26873-2026 (Annexure P-3) and 20.05.2026 passed in CRM-M-28676-2026 (Annexure P-4), respectively.

However, it is noticed that while granting such relief, Coordinate Bench had taken note of the fact that the injury attracting Section 118(2) of the BNS, was specifically attributed to accused Jodha Singh, who is the petitioner herein.

5. Upon a perusal of the FIR and the allegations levelled therein, it emerges that petitioner is alleged to have raised a *lalkara* exhorting the co-accused to catch hold of the complainant party and teach them a lesson. It is further alleged that petitioner inflicted a *dattar* blow on the complainant, which struck the left side of his upper lip, resulting in the breaking of two upper teeth. The said injury forms the basis for attracting Section 118(2) of BNS, which constitutes the gravest offence alleged in the present case.

6. Having regard to the specific role attributed to the petitioner and nature of the injury allegedly caused by him, this Court is of the considered view that petitioner does not deserve the extraordinary relief of anticipatory bail. **Accordingly, present petition is dismissed.**

(SANJAY VASHISTH)
JUDGE

04.06.2026

Lavisha

<i>Whether speaking/reasoned</i>	<i>Yes/No</i>
<i>Whether reportable</i>	<i>Yes/No</i>